

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT.

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
THIRD PARTY RESPONDENTS,

**SAMSUNG ELECTRONICS AMERICA, INC.'S
SECOND MOTION TO COMPEL**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its undersigned counsel, moves, pursuant to 46 C.F.R. § 502.150, for an order compelling Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) to produce U.S.-based documents and information it has improperly withheld, failed to produce, or produced in a deficient manner.¹

I. INTRODUCTION

The Presiding Officer requested SEA advise if the COSCO production on April 3, 2026, or any other basis, mooted SEA’s expedited motion to compel dated February 11, 2026, which focused on COSCO’s refusal to produce unredacted China-based documents. It does not. COSCO’s most recent claim that it suddenly found a way to produce the documents and intends to finally do so rings decidedly hollow. COSCO has left a trail of unfulfilled promises on China documents, and COSCO *still* has not produced any unredacted China documents. The requested order compelling production of China-based documents is more necessary than ever.

This second compel Motion focuses on COSCO’s U.S. discovery failings. COSCO has been shirking its discovery obligations for nearly eight months. COSCO’s fundamentally deficient document production is materially prejudicing SEA’s ability to obtain relevant and responsive documents and information necessary to proceed to depositions and prepare its case. Despite representing in the March 6, 2026 Joint Status Report (Dkt. No. 109 at 2) that it had “substantially completed” its production of documents located in the United States, a review of COSCO’s production reveals that key information is missing, incomplete, and casting serious doubt about the adequacy of COSCO’s search and collection efforts.

When the Presiding Officer asked COSCO at the April 6 Conference how it could possibly have produced only 531 invoices out of over 6,000 charges, counsel advised it only produced

¹ This motion (“Motion”) is filed pursuant to the Presiding Officer’s directive at the April 6, 2026 status conference (“April 6 Conference”).

invoices for charges that COSCO received, not all invoices or communications relating to charges on SEA cargo moved by, or on behalf of, COSCO. Thus, COSCO has unilaterally decided to exclude discovery on charges assessed by key COSCO subcontractors, such as railroads moving SEA containers for COSCO. COSCO admits that it has the contractual relationships with the rail carriers, yet counsel inexplicably asserts that COSCO has “no visibility” about rail charges. COSCO is dodging the issue: records and communications pertaining to the inland transportation of SEA containers are *relevant*. Whether COSCO has physical rail invoices or not, COSCO plainly has voluminous business records and communications pertaining to rail shipments that must be produced, not categorically excluded. COSCO has not even produced the agreements with its rail subcontractors. This is just a microcosm of COSCO’s mistaken view of its discovery obligations.

The deficiencies span multiple, critical categories of documents and information addressed in this Motion.² COSCO’s attempts to evade its unambiguous discovery obligations by characterizing key aspects of the movements as the responsibility of subcontractors or other parties should not be tolerated. SEA would be severely prejudiced if it had to take depositions without the critical responsive documents and information requested herein.

II. ARGUMENT

A. COSCO is Improperly Withholding Underlying Source Documents

COSCO has repeatedly asserted—most recently in response to SEA’s March 23, 2026, letter—that although SEA’s Charge Data Document (SEA_COSCO-2069801) identifies 6,443 shipments, only 531 charges are “attributed” to COSCO **because COSCO did not issue the invoice directly**—and COSCO has limited its production on that basis. *See* COSCO’s Response

² SEA raised each of these deficiencies in its March 23, 2026 letter (“March 23 Letter”), requesting remediation before the April 16, 2026 production deadline. *See* March 23 Letter, Exhibit B-1 to the declaration of Kristine Little dated April 7, 2026 (“Little Decl.”) (Exhibit B). COSCO has refused to meaningfully comply.

Letter to SEA, Exhibit B-2 at 4. This is not how discovery works. SEA has the right to inspect relevant evidence from COSCO its self-selection of documents. If COSCO has invoices (and other responsive documents and communications related to the container movements) for *any* of the identified shipments and charges, COSCO plainly must produce them. COSCO has refused to.

COSCO is the ocean common carrier of cargo in containers moving under “combined” or “integrated” bills of lading for through carriage covering both ocean and inland transportation, *i.e.*, store-door transportation. The inland transportation of the shipments at issue was delayed and COSCO assessed—or caused to be assessed—the challenged charges. COSCO improperly attempts to restrict discovery only to those charges invoiced in its own name, excluding invoices issued by “third-parties” (e.g., COSCO subcontractors) even though COSCO was the common carrier providing the underlying transportation services for SEA’s shipments. *See* April 6 Conference Transcript, Exhibit B-3 at 24 (COSCO attributing the roughly 5,400-shipment gap to the invoices for those shipments not being issued directly by COSCO).

COSCO is not advancing a valid discovery objection; it is advancing a disguised relevancy objection on the basis of a contested merits position—*i.e.*, whether certain shipments constitute container-yard movements or door movements. *See id.* at 30–32. That distinction, whatever its ultimate significance, does not relieve COSCO of its obligation to produce relevant records at this stage of discovery. Nor does COSCO’s chosen payment routing (including through intermediaries) or use of transportation subcontractors such as railroads or truckers diminish COSCO’s obligation to produce invoices and communications for all SEA shipments and charges at issue here. *See id.* at 18, 25–27. Consistent with that improper limitation, COSCO’s production of invoices, job orders, and sea waybills remains materially incomplete, notwithstanding COSCO counsel’s representation at the April 6 Conference that COSCO has produced all invoices, job orders, and

bills of lading. *See* April 6 Conference Transcript, Exhibit B-2 at 11; *See* SEA’s Motion to Compel, Dkt. 95 at Exhibit A-1 (“MTC”) Request for Production No. (“RFP”) 3.³

Deep Dive: Withheld Source Documents: COSCO has not produced all of the invoices, job orders, and Waybills in this dispute. The production metrics show key missing information:

- **Invoices.** Of the 6,443 unique shipments at issue, COSCO has produced only 1,020 invoices—a fraction of what was invoiced. *See* March 23 Letter, Exhibit B-1 at 3. Even the 1,020 number overstates production because it includes **invoices for ocean freight (which is not at issue as SEA seeks no reparations for freight recovery whatsoever)** and does not account for shipments with multiple invoices. *Id.*
- **Job Orders.** Of the 6,443 shipments at issue, COSCO produced job orders (initiating a domestic truck move) for only 3,273. *Id.* at 4. While COSCO has produced data relating to some of these job orders, the hard copies contain information that is not in the data produced, including the date the job order was issued—which is critical because delays in issuance would impact the timely movement of a container. *Id.*
- **Sea Waybills.** COSCO produced sea waybills for 4,024 of the 4,375 waybills at issue and it must complete the production. *Id.*

Deep Dive: COSCO’s Rail Failings: Of all COSCO’s positions, this is the most egregious. COSCO confirmed that it contracts with railroads to perform inland transportation of SEA shipments, yet counsel nevertheless contends it has no visibility into the rail charges. *See* April 6 Conference Transcript, Exhibit B-3 at 30, 34; *see also* at 16–17, 24. COSCO’s position is untenable. COSCO is sandbagging SEA by withholding rail information. SEA seeks over \$12 million in D&D charges, with over \$8.5 million of demurrage, and over \$5.2 million of which is rail storage. Am. Complaint Exhibit A (collecting SEA D&D charges). SEA’s review of COSCO’s “substantially complete” document production shows **only 148 emails sent or received from rail carriers** (for example, @bnsf, @cn or @nscorp). Little Declaration para. 4. The production of any

³ SEA cites the discovery requests submitted with its first Motion to Compel, which are incorporated by reference herein, as well as the applicable discovery requests at issue.

rail emails is an admission by COSCO they are responsive and relevant, and it is wrongful COSCO has selectively produced only 148 relevant communications with its rail subcontractors when COSCO's rail movement of SEA containers incurred \$5.2 million in demurrage charges.

On store door moves using rail for a part of the inland transportation, COSCO was the common carrier for the SEA cargo, but for the rail move, COSCO was the shipper and consignee on the railroad's line haul bill of lading. COSCO necessarily possesses contractual documentation, shipping and movement data, communications, chassis provisioning, and financial information associated with rail moves and this is missing from the production. *See* March 23 Letter, Exhibit B-1 at 3. COSCO's assertion that it does not have documentation relating to rail charges is not credible and cannot be reconciled with COSCO's own public statements. *See* COSCO Response Letter to SEA, Exhibit B-2 at 6–7. COSCO represents on its website that it “has a direct contract relationship with all Class 1 railroads in North America.”⁴ A party that contracts directly with every Class 1 railroad, that issues the bill of lading, that is responsible for the charges, and that selects the motor carriers for store door moves plainly has—or should have—the invoices, communications, and documentation reflecting those charges. *See* March 23 Letter, Exhibit B-1 at 3. COSCO's suggestion that SEA should instead “presumably” possess this information is improper, as it attempts to shift COSCO's own discovery obligations to SEA. Exhibit B-3 at 19–21.

Recent findings in a companion case are instructive. In *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited*, Presiding Officer Richard C. Ambrow found that the ocean carrier's claim that it had produced all responsive documents “does not appear to be

⁴ COSCO, Services, <https://www.coscologam.com/page/view/rail> (last visited April 6, 2026). *See* April 6 Conference Transcript, Exhibit B-2 at 30 (admitting COSCO, not SEA, holds the rail contracts).

accurate” and that the carrier’s “searches and productions have been deficient.” FMC Dkt. No. 24-17, 2026 WL 579218 (ALJ Feb. 20, 2026) (Dkt. 120, Order Following Second Status Conference at 2). ALJ Ambrow required the carrier to describe its searches and to conduct supplemental searches and productions. *Id.* at 3. Here, COSCO should have done this long ago to avoid sanctions for its intentional withholding of source information juxtaposed with the bald assertion its U.S. based document production was “substantially complete.” COSCO must be compelled to produce all responsive invoices, job orders, and sea waybills, with a certification it will now produce all communications with its subcontractors.

B. COSCO Must Produce Shipment Information for SEA’s Shipments

COSCO has not produced foundational electronic database records that contain important data on container events and movements, or that should explain (i) the reasons for delays, (ii) the basis for assigning liability, and (iii) the charges assessed to SEA—information directly sought by SEA’s discovery requests, which requests COSCO’s ordinary-course shipment data for SEA’s shipments, including free-time dates/times, applicable rate rules, amounts assessed, and related shipment-record data. *See* MTC, at Exhibit A-1 (Interrogatories Nos. 2 and 3, and RFP No. 3)..

COSCO’s own productions confirm that these comprehensive movement records exist and can be exported, but COSCO has, yet again, produced only fragments. On April 3, 2026, COSCO produced an Excel spreadsheet containing end-to-end container-movement data (origin through empty return) for selected containers during a two-month period, demonstrating COSCO maintains a broader dataset. *See* COSCO1029398, Exhibit B-4. Other produced materials likewise reflect COSCO’s ability to export detailed, event-level tracking reports from contemporaneous business record databases—including time-stamped entries for key events on a per-container and per charge basis. **This evidence confirms COSCO maintains comprehensive container-event and movement data but withheld the complete shipment-movement records for SEA cargo.**

COSCO must have this information, otherwise it would not be able to track container movements for customer and track last free days to calculate D&D charges.

In addition to various partial exported data tables that turned up as email attachments here and there in the production, internal email communications confirm COSCO can obtain “full container events” through a “Customized Report” interface and a separate portal independent of IRIS. *See* COSCO0627136, Exhibit B-5. COSCO must be compelled to produce the full shipment and container-movement dataset responsive to SEA’s discovery requests. *See* MTC at Exhibit A-1 (Interrogatories Nos. 2 and 3, and RFP No. 3).

C. COSCO’s Incomplete Production for Charge and Chassis Data

COSCO’s deficient production is not limited to container movement information. COSCO has also failed to produce sufficient charge information, chassis information, and diversion request information. *See* MTC at Exhibit A-1, RFP Nos. 3, 4, 5, 10, 12, 18.

Charge Information: Despite its representations to the contrary, COSCO’s Charge Data Document (COSCO0624910) is insufficient to satisfy its production obligations. *See* MTC at Exhibit A-20. This document only addresses a select group of detention charges and lacks key information that SEA has explicitly requested, including vessel discharge dates, first and last free days at the marine terminal, charge rates and rules, applicable tariffs, and invoice reference information. This is foundational information that was needed by COSCO to assess D&D charges. COSCO demands SEA develop data as to the reason SEA seeks recovery of the D&D charges it was forced to pay and yet COSCO denies the tools for this analysis that are squarely in its possession COSCO was responsible for moving SEA’s goods and knows or should have known the reason for the additional charges on the moves! SEA has been forced to rely on scant third-party invoices produced to understand the charges, with few documents reflecting the “original basis” of the charges. *See* April 6 Conference Transcript, Exhibit B-3 at 11, 18–20, 23.

Chassis Information: Despite its central responsibility for ensuring chassis were available to move containers with SEA goods, COSCO has likewise failed to produce chassis-related information. As the common carrier responsible for delivering SEA’s containers to inland destinations, COSCO was responsible for securing sufficient chassis. *See* March 23 Letter, Exhibit B-1 at 7. COSCO’s own policy documents indicate that it requires truckers to communicate regarding alternative chassis usage and returns. *Id.* Critically, COSCO admitted that it “periodically received data from chassis providers reflecting chassis supply.” *Id.* Yet, despite repeated requests by SEA, COSCO has not produced this information.

Diversion Requests: COSCO produced no information relating to requests for the diversion of containers, despite evidence that COSCO recorded this information. *Id.* at 7–8.

D. COSCO Must Be Compelled to Produce Policies and Procedures

SEA has sought production of COSCO’s internal policies, procedures, and related materials since the outset of discovery. *Id.* at 2; MTC, Exhibit A-1, RFP No. 15. SEA’s review of COSCO’s U.S. productions reveals multiple references to additional responsive policy, procedure, and reporting documents that were not produced. *See* March 23 Letter, Exhibit B-1 at 2. In particular, COSCO produced internal correspondence referencing a centralized repository containing numerous procedure documents governing operational practices and charge-related processes. *Id.* This is obviously relevant to a Shipping Act case, as one of the key elements under Section 41102(c) of the Shipping Act is that an ocean carrier like COSCO “may not fail to establish, observe, and enforce just and reasonable regulations and **practices** relating to or connected with receiving, handling storing or delivering property.” (emphasis added).

On February 6, 2026, SEA requested confirmation as to whether these materials would be produced, but COSCO did not respond. *Id.* Nearly two months later—and only after SEA requested a status conference—COSCO produced a **limited subset** of these materials, which remains

incomplete. *See* April 6 Conference Transcript, Exhibit B-3 at 7.⁵ Notably, COSCO's own correspondence identifies specific procedures by title, including "Demurrage and Storage Adjustment Policy NAOC," "chassis exception procedures," and "Organizational Charts," yet these documents were inexplicably withheld. *See* COSCO0960923, Exhibit B-6; COSCO0960922, Exhibit B-7. Even as to the procedures produced, COSCO did not produce versions in effect during the relevant time period.⁶ These materials are relevant to SEA's claims **and should have been produced at the initial document deadline in August 2025**. COSCO must produce all responsive policies, procedures, and related communications in full.

E. COSCO Must Be Compelled to Produce Its Subcontractor Agreements

SEA has not located any rail agreements in COSCO's production other than the applicable tariffs. How is this possible? They should have been part of the first documents produced in August 2025. For motor carriers, SEA located only the UIIA and related UIIA addenda. SEA has identified signed terminal agreements but cannot confirm all have been produced. Little Decl. para. 5. COSCO should be compelled to produce all of the contracts with its subcontractors, including but not limited to agreements with railroads, truckers, terminal contracts and Tariffs. *See* March 23 Letter, Exhibit B-1 at 11. COSCO's April 3 Letter provides no valid reason to withhold them, either. Instead, COSCO says you tell us, SEA, who our third-party contracts are with and what you need, and we'll then determine if a "supplement is necessary." *Id* at 9. Totally backward. If COSCO had produced all its subcontractor agreements, it would have cited the bates numbers chapter and verse. It did not. They must be produced now.

F. COSCO Must Be Compelled to Correct Production Errors

SEA has identified material deficiencies in COSCO's production, including incomplete

⁵ *See* April 6 Conference Transcript, Exhibit B-3 at 7; *see, e.g.*, COSCO1029465, Exhibit B-8.

⁶ *See, e.g.*, COSCO1029460, Exhibit B-9.

email threads and emails with truncated or missing content. *Id.* at 10–11.⁷ These defects prevent SEA from assessing the completeness of COSCO’s **internal** communications. COSCO must conduct a quality-control review and produce a corrected production. COSCO’s insistence that no error exists underscores the need for an ordered review to ensure a reliable record.

III. CONCLUSION

SEA respectfully requests that the Presiding Officer enter an order granting SEA’s Motion to Compel and directing COSCO to produce the categories of U.S. based documents and information described herein, including requiring COSCO to provide an unequivocal, counsel-signed certification that it has produced all internal and external communications addressing the basis for the D&D charges and responsibility for those charges.⁸

Respectfully Submitted,

Dated: April 7, 2026

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⁷ COSCO0259383 (Exhibit B-10) appears cut off at the bottom of the email thread, while SEA’s corresponding record (SEA_COSCO-0096376, Exhibit B-11) reflects additional content.

⁸ **Meet and Confer Certification:** SEA met and conferred regarding the discovery deficiencies through its March 23, 2026 letter, the April 3, 2026 correspondence (including COSCO’s written positions), and the April 6, 2026 conference before the ALJ. The ALJ granted SEA’s request and ordered SEA to file an expedited motion to compel by 5 p.m on April 7.

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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